IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No204
CP(CAA)/41(AHM)2021
in
CA(CAA)/24(AHM)2021
With
ITEM No 205- IA 67 of 2022

Proceedings under Section 230-232

IN THE MATTER OF:

Nilkamal Limited **.....Applicant**

.....Respondent

Order delivered on ..08/12/2022

Coram:

Dr.Deepti Mukesh, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant	: Ms. Dharmishta Raval, Adv.
For the RD	: Mr. Liladhar Sharma, Assistant Director (NWR)
For the Income Tax Department	: Ms. Pankti Shah, Adv. for Ms. Maithili Mehta, Adv.

ORDER

IA 67 of 2022

Application is filed by the petitioner companies seeking to change the appointed date from 01.04.2021 to 01.10.2022. Learned Counsel states that resolution was passed by the board of directors in their meeting held on 26.08.2022, wherein it was unanimously resolved that the appointed date be changed as prayed in the application. The copy of board resolution is annexed with the application. Learned Counsel further states that the petition of the transferor company is pending before the Mumbai Bench (NCLT), and it has allowed the change of appointed date for the scheme. The copy of the said order of the Mumbai Bench (NCLT) is annexed with this application. We have perused the order, and since there has to be uniformity in both the separate petitions about the appointed date, we allow the prayer in this application. Thereby, the applicant companies are allowed to revise the appointed date from 01.04.2021 to 01.10.2022.

Application is allowed and disposed of in terms of the above order.

Learned Counsel states that the main petition in the case of transferor company is pending herein before the Mumbai Bench (NCLT) and is coming up for hearing on January 2023, wherein the OL has also filed report. Let copy of OL report filed in the petition before the Mumbai Bench (NCLT), be filed here for perusal of this Bench. Let the copy of updated list of creditors / shareholders, and the latest audited balance-sheet of the transferee company as per new appointed date be filed within a week.

List on 17.01.2023.

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AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

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DR. DEEPTI MUKESH
MEMBER (JUDICIAL)